



CHAPTER xlviii.

An Act to provide for the transfer to the Gas Light and Coke Company of the undertakings of the Southend-on-Sea and District Gas Company and the Brentwood Gas Company to confer various powers upon the Gas Light and Coke Company and for other purposes. A.D. 1931.
[8th July 1931.]

WHEREAS the Gas Light and Coke Company (hereinafter referred to as "the Gas Light Company") were originally incorporated by royal charter in the year one thousand eight hundred and twelve and were incorporated in perpetuity by the Act 59 George III cap. 20 (Local):

And whereas by the Gas Light and Coke Company's Act 1868 all the prior Acts of the Gas Light Company were repealed and the Gas Light Company were continued and the provisions of all such prior Acts were consolidated and amended:

And whereas the Gas Light Company are supplying gas in an area of supply which consists of a large part of the county of London and parts of the counties of Middlesex Essex Surrey Hertford Buckingham and Berks:

And whereas the area of supply of the Gas Light Company adjoins the respective areas of supply of the Southend-on-Sea and District Gas Company (hereinafter

A.D. 1931. referred to as "the Southend Company") and of the
— Brentwood Gas Company (hereinafter referred to as
"the Brentwood Company") :

And whereas it would be to the advantage of the consumers of gas now supplied by the Southend Company and the Brentwood Company respectively that the undertakings of those companies should be amalgamated with that of the Gas Light Company and the Gas Light Company have agreed with the said companies for the acquisition of their respective undertakings :

And whereas the agreed consideration for the acquisition of both the said undertakings consists (in addition to the assumption by the Gas Light Company of the debts liabilities and obligations of the Southend Company and the Brentwood Company) in the issue of ordinary and preference stock and debenture stock of the Gas Light Company to the holders of ordinary and preference stock and debenture stock of the Southend Company and the Brentwood Company respectively and the payment to the holders of ordinary stock of the Southend Company of certain sums in cash :

And whereas it is expedient that the acquisition of the said undertakings upon the terms hereinbefore mentioned should be sanctioned :

And whereas in consequence of the acquisition of the said undertakings the directors and auditors of the Southend Company and the Brentwood Company and such of the staff officers and employees of those companies as are not taken into the service of the Gas Light Company will suffer loss by deprivation of office or employment and the Gas Light Company have agreed to make such provision as is contained in this Act with reference to such directors auditors staff officers and employees and it is expedient that the said provision should be enacted :

And whereas under and by virtue of the Acts and Orders relating to the Gas Light Company the dividends payable on the ordinary stock of the Gas Light Company are regulated by a sliding scale under which the authorised rate of such dividends is greater or less than a standard rate of four per centum per annum according as the price per therm from time to time charged by the Gas Light Company for gas supplied by them in certain

parts of their area of supply is less or greater than a standard price of eleven decimal four pence per therm : A.D. 1931.
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And whereas under the provisions of the said Acts and Orders the Gas Light Company are authorised or required to charge for gas supplied by them in certain parts of their area of supply prices per therm exceeding the price per therm from time to time charged by them in other parts of that area :

And whereas it is expedient that in lieu of the said provisions regulating the dividends from time to time payable on the ordinary stock of the Gas Light Company and their powers of charging the provisions contained in this Act with respect to the application of the profits of the Gas Light Company should be made :

And whereas it is expedient that additional borrowing powers should be conferred upon the Gas Light Company :

And whereas it is expedient that certain perpetual mortgage debentures of the Gas Light Company should be converted into three per centum consolidated debenture stock of that company :

And whereas it is expedient that the other powers and provisions contained in this Act should be granted and made :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Gas Light and Coke Company's Act 1931. Short title.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Act divided
into Parts.

Part II.—Transfer of Southend and Brentwood undertakings.

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Part III.—Price of gas and application of profits.

Part IV.—Borrowing powers and other financial provisions.

Part V.—Conversion of mortgage debentures.

Part VI.—Miscellaneous.

Incorporation of general Acts.

3. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital); and

Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

Provided that section 22 of the said Companies Clauses Act 1863 in its application to the Gas Light Company shall be read as if the words “and to the same amount as” were omitted therefrom.

Interpretation.

4. In this Act unless there be something in the subject or context repugnant thereto the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings And—

“The Gas Light Company” means the Gas Light and Coke Company;

“The directors” means the directors of the Gas Light Company;

“The Southend Company” means the Southend-on-Sea and District Gas Company;

“The Brentwood Company” means the Brentwood Gas Company;

“Ordinary stock” where used in relation to the Southend Company means the stocks of that company known respectively as original consolidated stock and new ordinary stock and new ordinary “B” stock or any of those classes of stock and where used in relation to the Brentwood Company means the stocks of that company known respectively as original stock and additional stock or either of those classes of stock;

“ Preference stock ” where used in relation to the A.D. 1931.

Southend Company means the five and a half per centum irredeemable preference stock and six per centum irredeemable preference stock of that company or either of those classes of stock and where used in relation to the Brentwood Company means the six per centum (limited to five per centum) preference stock and six per centum redeemable preference stock of that company or either of those classes of stock;

“ The Gas Light district ” means the limits of supply of the Gas Light Company as existing immediately before the date of transfer;

“ The Southend district ” means the limits of supply within which the Southend Company are as on the date immediately before the date of transfer authorised to supply gas and includes also for the purposes of this Act the detached portion of the parish of Great Wakering which adjoins the southern boundary of the parish of Barling and the northern boundary of the parish of Little Wakering in the rural district of Rochford;

“ The Brentwood district ” means the limits of supply within which the Brentwood Company are as on the date immediately before the date of transfer authorised to supply gas;

“ The date of transfer ” and “ the appointed day ” mean the first day of January one thousand nine hundred and thirty-two;

“ The Southend undertaking ” and “ the Brentwood undertaking ” respectively mean subject to the provisions of this Act the business goodwill and undertaking of the Southend Company or the Brentwood Company (as the case may be) subject to all duties obligations liabilities incumbrances contracts and engagements whatsoever in any way affecting those companies respectively or their respective undertakings or any part thereof and subsisting immediately before the date of transfer and the said expressions include (inter alia) all rights of making distributing and supplying gas and all other the rights easements powers authorities

A.D. 1931.

and privileges whatsoever of the Southend Company and the Brentwood Company respectively and all property assets and effects whatsoever and wheresoever and whether real or personal including cash balances reserve insurance and other funds investments and all other interests and rights in to and out of the property whether real or personal and obligations and things in action of or belonging to the Southend Company and the Brentwood Company respectively upon or immediately before the date of transfer and all books accounts deeds writings and documents relating thereto except any agreements entered into or to be entered into between the Southend Company or the Brentwood Company and the Gas Light Company relating to the transfer to the Gas Light Company of the Southend undertaking or the Brentwood undertaking and any letters and documents relative to the enforcing of any such agreements by the Southend Company or the Brentwood Company;

“Limits of supply” means in relation to the Gas Light Company the area within which that company are for the time being authorised to supply gas;

“The City Corporation” means the mayor aldermen and commons of the city of London in common council assembled;

“Employee” means any person in the service of the Gas Light Company other than a director;

“Employee co-partner” means an employee with whom the Company have entered into an agreement for his acquisition of a share in the profits of the Gas Light Company as part of the terms of his remuneration.

PART II.

TRANSFER OF SOUTHEND AND BRENTWOOD UNDERTAKINGS.

Transfer to
Gas Light
Company

5.—(1) On and from the date of transfer the Southend undertaking and the Brentwood undertaking shall by virtue of this Part of this Act be transferred to and

vested in the Gas Light Company upon and subject to the terms and conditions contained and for the consideration stated in this Act and from and after such transfer and vesting the area within which the Gas Light Company are authorised to supply gas shall be the area consisting of the Gas Light district the Southend district and the Brentwood district.

(2) On and from the date of transfer the Southend undertaking and the Brentwood undertaking shall form part of the undertaking of the Gas Light Company and subject to the provisions of the section of this Act of which the marginal note is "Southend Company and Brentwood Company to continue incorporated for specified purpose" the Southend Company and the Brentwood Company shall be and are hereby dissolved.

6. Notwithstanding anything contained in this Act the Southend Company and the Brentwood Company shall for the purpose of enforcing the provisions of any agreement entered into between those companies respectively and the Gas Light Company before the date of transfer and for that purpose only continue incorporated until the expiration of three months from the date of transfer or for such longer period as may be necessary for the purposes of any proceedings for enforcing any such agreement which may be pending at the expiration of the said period of three months but on and from the expiration of the last-mentioned period or of such longer period as aforesaid the Southend Company and the Brentwood Company shall be and are hereby finally dissolved :

Provided that nothing in this section shall postpone or interfere with the transfer to and vesting in the Gas Light Company of the Southend undertaking and the Brentwood undertaking as provided by the section of this Act of which the marginal note is "Transfer to Gas Light Company of Southend undertaking and Brentwood undertaking and dissolution of Southend Company and Brentwood Company" or postpone or affect the operation of any other provisions of this Act.

7. As and by way of consideration for the transfer to the Gas Light Company of the Southend undertaking the Gas Light Company (in addition to carrying into effect the provisions of the section of this Act of which the marginal note is "Gas Light Company to issue

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of South-
end under-
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Brentwood
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taking and
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of South-
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Brentwood
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Southend
Company
and Brent-
wood Com-
pany to
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Considera-
tion for
transfer of
Southend
under-
taking.

A.D. 1931. — “ debenture stock in substitution for debenture stocks
“ of Southend Company ”) shall as soon as reasonably
practicable after the date of transfer and subject to and
in accordance with the provisions of this Part of this
Act—

- (1) Issue to those persons who immediately before
that date held ordinary stock or preference
stock of the Southend Company ordinary stock
or four per centum consolidated preference
stock of the Gas Light Company as follows
(that is to say):—

To each holder of original consolidated
stock or new ordinary stock of the Southend
Company for every one hundred pounds of
such stock held by him the sum of one
hundred and thirty pounds ordinary stock
of the Gas Light Company to be created as
hereinafter provided;

To each holder of new ordinary “ B ”
stock of the Southend Company for every
one hundred pounds of such stock held by
him the sum of one hundred and twenty-
three pounds six shillings and eightpence
ordinary stock of the Gas Light Company
to be created as hereinafter provided;

To each holder of five and a half per centum
irredeemable preference stock of the Southend
Company for every one hundred pounds of
such stock held by him the sum of one hundred
and thirty-seven pounds and ten shillings
four per centum consolidated preference stock
of the Gas Light Company to be created as
hereinafter provided; and

To each holder of six per centum irredeem-
able preference stock of the Southend Com-
pany for every one hundred pounds of such
stock held by him the sum of one hundred and
fifty pounds four per centum consolidated
preference stock of the Gas Light Company
to be created as hereinafter provided;

and so in proportion for any amount of any of
such stock of the Southend Company less than
one hundred pounds:

- (2) Pay to those persons who immediately before the said date held ordinary stock of the Southend Company sums in cash as follows (that is to say):— A.D. 1931.
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To each holder of original consolidated stock or new ordinary stock of the Southend Company for every one hundred pounds of such stock held by him the sum of seven pounds and thirteen shillings; and

To each holder of new ordinary " B " stock of the Southend Company for every one hundred pounds of such stock held by him the sum of seven pounds five shillings and sixpence;

and so in proportion for any amount of any of such stock of the Southend Company less than one hundred pounds.

8. As soon as reasonably practicable after the date of transfer the Gas Light Company shall subject to and in accordance with the provisions of this Part of this Act issue to those persons who immediately before that date held debenture stock of the Southend Company three per centum consolidated debenture stock of the Gas Light Company as follows (that is to say):— Gas Light Company to issue debenture stock in substitution for debenture stocks of Southend Company.

To each holder of five per centum perpetual debenture stock of the Southend Company for every one hundred pounds of such debenture stock held by him the sum of one hundred and sixty-six pounds thirteen shillings and fourpence of such debenture stock of the Gas Light Company to be created as hereinafter provided; and

To each holder of four per centum perpetual debenture stock of the Southend Company for every one hundred pounds of such debenture stock held by him the sum of one hundred and thirty-three pounds six shillings and eightpence of such debenture stock of the Gas Light Company to be created as hereinafter provided;

and so in proportion for any amount of any such debenture stock of the Southend Company less than one hundred pounds.

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Consideration for transfer of Brentwood undertaking.

9. As and by way of consideration for the transfer to the Gas Light Company of the Brentwood undertaking the Gas Light Company (in addition to giving effect to the provisions of the section of this Act of which the marginal note is "Gas Light Company to issue debenture stock in substitution for debenture stock of Brentwood Company") shall as soon as reasonably practicable after the date of transfer and subject to and in accordance with the provisions of this Part of this Act issue to those persons who immediately before that date held ordinary stock or preference stock of the Brentwood Company ordinary stock or four per centum consolidated preference stock or six per centum redeemable preference stock of the Gas Light Company as follows (that is to say) :—

To each holder of original stock of the Brentwood Company for every one hundred pounds of such stock held by him the sum of one hundred and fifty-two pounds ordinary stock of the Gas Light Company to be created as hereinafter provided ;

To each holder of additional stock of the Brentwood Company for every one hundred pounds of such stock held by him the sum of one hundred and six pounds and eight shillings ordinary stock of the Gas Light Company to be created as hereinafter provided ;

To each holder of six per centum (limited to five per centum) preference stock of the Brentwood Company for every one hundred pounds of such stock held by him the sum of one hundred and twenty-five pounds four per centum consolidated preference stock of the Gas Light Company to be created as hereinafter provided ; and

To each holder of six per centum redeemable preference stock of the Brentwood Company for every one hundred pounds of such stock held by him the sum of one hundred pounds six per centum redeemable preference stock of the Gas Light Company to be created as hereinafter provided ;

and so in proportion for any amount of any of such stock of the Brentwood Company less than one hundred pounds.

10. As soon as reasonably practicable after the date of transfer the Gas Light Company shall subject to and in accordance with the provisions of this Part of this Act issue to those persons who immediately before that date held five and a half per centum debenture stock of the Brentwood Company three per centum consolidated debenture stock of the Gas Light Company as follows (that is to say) :—

To each holder of such debenture stock of the Brentwood Company for every one hundred pounds of such debenture stock held by him the sum of one hundred and eighty-three pounds six shillings and eightpence of such debenture stock of the Gas Light Company to be created as hereinafter provided and so in proportion for any amount of such debenture stock of the Brentwood Company less than one hundred pounds.

11.—(1) As on the date of transfer there shall be created by virtue of this Act and without any other requisite such nominal amounts of ordinary stock and four per centum consolidated preference stock and six per centum redeemable preference stock and three per centum consolidated debenture stock of the Gas Light Company as shall be necessary to give effect to the provisions of this Part of this Act with respect to the transfer of the Southend undertaking and the Brentwood undertaking.

(2) The amounts of ordinary stock and preference stock and debenture stock of the Gas Light Company to which the holders of ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company respectively become by virtue of this Act entitled shall be vested in such holders as on and from the date of transfer and such holders shall subject to the provisions of the section of this Act of which the marginal note is “As to fractional parts of one pound of stock” be forthwith registered in the books of the Gas Light Company as the holders of such amounts respectively.

(3) Subject to the provisions of this Act the ordinary stock and preference stock and debenture stock of the Gas Light Company created as aforesaid shall rank for dividend or interest as from the thirty-first day of

A.D. 1931. — December one thousand nine hundred and thirty-one and as from that date the ordinary and preference stock and debenture stock of the Southend Company and of the Brentwood Company shall cease to bear any dividend or interest.

Ordinary and preference stock and debenture stock of Gas Light Company created under this Part of Act to form part of existing stocks.

12. The ordinary stock and four per centum consolidated preference stock and three per centum consolidated debenture stock of the Gas Light Company created by virtue of the section of this Act of which the marginal note is "Creation of ordinary and preference stock and debenture stock of Gas Light Company" for purposes of transfer shall in all respects and for all purposes be deemed to form part of and be consolidated with the ordinary stock or the four per centum consolidated preference stock or the three per centum consolidated debenture stock (as the case may be) of the Gas Light Company existing at the date of transfer and such first-mentioned ordinary stock and preference stock and debenture stock and the interest on that debenture stock shall respectively rank *pari passu* with the said existing ordinary stock and preference stock and debenture stock and the interest on that debenture stock.

As to redeemable preference stock created under Act.

13.—(1) The six per centum redeemable preference stock of the Gas Light Company created by virtue of this Act shall be known as "six per centum Brentwood redeemable preference stock" and the dividends thereon shall rank *pari passu* with the dividends on the four per centum consolidated preference stock of the Gas Light Company.

(2) The six per centum Brentwood redeemable preference stock shall be transferable in amounts of one pound or any multiple of one pound and not otherwise.

(3) The six per centum Brentwood redeemable preference stock shall be redeemable by the Gas Light Company on the first day of January one thousand nine hundred and thirty-three by the payment in cash to each holder of such preference stock of a sum calculated at the rate of one hundred pounds for each one hundred pounds of such preference stock held by him.

14. In every case where under the foregoing provisions of this Part of this Act a holder of ordinary stock or preference stock or debenture stock of the Southend Company or of the Brentwood Company would be entitled to be registered as the holder of any fractional part of one pound of ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock of the Gas Light Company or of any amount of such ordinary stock or preference stock or debenture stock including any such fractional part as aforesaid the Gas Light Company in lieu of registering such holder and issuing to him a certificate as holder of such fractional part of one pound of ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock or of an amount of ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock including such fractional part shall pay to such holder such a sum in cash as shall be equal to the value of such fractional part at the mean market price on the date of transfer and shall register such holder and issue to him a certificate as holder of the amount (if any) of ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock of the Gas Light Company to which he shall be entitled as aforesaid excluding such fractional part and the receipt of such holder for the sum in cash so paid as aforesaid shall be a sufficient discharge to the Gas Light Company in respect of such fractional part. The Gas Light Company may either cancel all or any of the ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock in respect of which any such payment has been made or issue the same to any willing purchaser thereof in amounts of one pound or multiples of one pound but not otherwise and any loss or expense which may be incurred in connection with such issue shall be borne by the Gas Light Company.

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As to
fractional
parts of
one pound
of stock.

15. The creation by virtue of this Act of ordinary stock and four per centum consolidated preference stock and six per centum Brentwood redeemable preference stock and three per centum consolidated debenture stock of the Gas Light Company shall not affect the

Stock &c.
created by
this Act
not to
affect Gas

A.D. 1931. powers of the Gas Light Company under their existing Acts and Orders or this Act of raising money by borrowing on mortgage or by the creation and issue of debenture stock but those powers shall continue to be exerciseable by the Gas Light Company as if this Part of this Act had not been enacted.

Light
Company's
powers of
borrowing.

As to trusts of substituted stock.

16. The ordinary stock or preference stock or debenture stock of the Gas Light Company of which the holders of ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company are pursuant to the provisions of this Part of this Act respectively registered as the holders and all sums of cash paid by the Gas Light Company under this Part of this Act shall be held in the same rights upon the same trusts and subject (so far as is consistent with such provisions) to the same powers provisions charges and liabilities as those in upon or to which the ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company for which such ordinary stock or preference stock or debenture stock of the Gas Light Company and sums of cash are respectively substituted were held or were subject immediately before the date of transfer and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of any such ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company and not to adeem any gift of such stock or debenture stock made by any will or other testamentary instrument and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company are hereby expressly authorised and required to accept any ordinary stock or preference stock or debenture stock of the Gas Light Company of which they are pursuant to the provisions of this Part of this Act registered as the holders and any sums of cash paid to them under the provisions of this Part of this Act and to hold dispose of or otherwise deal with such ordinary stock preference stock or debenture stock and sums of cash in all respects as they might have held disposed of or otherwise dealt with the ordinary or preference

stock or debenture stock of the Southend Company or of the Brentwood Company for which the same are substituted and are hereby excused from any liability in respect of all acts bona fide done by them in pursuance of the provisions of this Part of this Act. A.D. 1931.

17. The Gas Light Company shall call in the certificates for ordinary or preference stock or debenture stock of the Southend Company and of the Brentwood Company for which ordinary stock or preference stock or debenture stock of the Gas Light Company and sums of cash (if any) are substituted under the provisions of this Part of this Act and shall issue free of charge in exchange for those certificates to the respective holders of the ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company represented thereby certificates for ordinary stock or preference stock or debenture stock (as the case may be) of the Gas Light Company of the respective amounts and pay to such holders the sums of cash (if any) to which those holders are by this Part of this Act respectively entitled but no holder of ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company shall be entitled to a new certificate or to receive any such sum of cash as aforesaid until he shall have delivered up to the Gas Light Company to be cancelled the existing certificate for which such certificate and sum of cash (if any) are to be substituted or shall have proved to the reasonable satisfaction of the directors the loss or destruction of such certificate and shall have given to the Gas Light Company an indemnity against any and every claim in respect of such lost or destroyed certificate or the ordinary or preference stock or debenture stock represented thereby : Exchange of certificates.

Provided that until the issue of such new certificates the holders of the existing certificates for ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company shall (according to the amounts of ordinary stock or preference stock or debenture stock of the Gas Light Company to be issued under the provisions of this Part of this Act in substitution or part substitution for the ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company which such existing certificates respectively represent) have and

A.D. 1931. — possess the same rights and privileges as if such existing certificates were certificates for those respective amounts of ordinary stock or preference stock or debenture stock of the Gas Light Company but if any such holder neglect or omit to send or deliver to the Gas Light Company his certificate or certificates for ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Southend Company or of the Brentwood Company (as the case may be) the Gas Light Company may suspend the payment of any dividends or interest declared or becoming payable upon or in respect of the ordinary or preference stock or debenture stock so held by him until such certificate or certificates is or are delivered up to the Gas Light Company or is or are proved to the reasonable satisfaction of the directors to have been lost or destroyed and until such indemnity as aforesaid shall have been given.

Certificates
&c. to re-
main in
force.

18. All transfers or other dispositions of any ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company made but not registered prior to the date of transfer if otherwise valid shall notwithstanding the provisions of this Part of this Act be valid and have due effect given to them respectively as transfers or dispositions of (as the case may be)—

- (a) the amounts (being in each case a multiple of one pound) of ordinary stock or four per centum consolidated preference stock or six per centum Brentwood redeemable preference stock or three per centum consolidated debenture stock of the Gas Light Company which represent the ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company thereby expressed to be transferred or disposed of and which are substituted for the same by this Part of this Act; or
- (b) (i) ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock of the Gas Light Company to the amount of the multiple of

one pound next below the amount of ordinary or preference stock or debenture stock of that company which but for the provisions of the section of this Act of which the marginal note is "As to fractional parts of one pound of stock" would have represented the ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company transferred or disposed of by such transfer or disposition as aforesaid; and

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(ii) a sum in cash equal to the value of any fractional part of one pound of such ordinary stock or preference stock or debenture stock of the Gas Light Company at the mean market price on the date of transfer; and

- (c) in either case (where the transfer or disposition is of ordinary stock of the Southend Company) the sum in cash payable pursuant to the section of this Act of which the marginal note is "Consideration for transfer of Southend undertaking" to the holder of the stock referred to in such transfer or disposition;

although the instrument of transfer or disposition shall describe the same as ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company and the Gas Light Company shall accordingly register the ordinary stock or preference stock or debenture stock in the name of the transferee or person taking under the disposition and pay to such person the sum (if any) payable in cash and any bequest of or any covenant in or provision of any deed or instrument which but for the passing of this Act would apply to the ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company so transferred or disposed of as aforesaid shall be held to apply to an amount of ordinary stock or preference stock or debenture stock of the Gas Light Company (as the case may be) equal to that which is under the provisions of this Part of this Act substituted for such ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company together with any sum of cash payable under the provisions of this Part of this Act.

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Separate accounts of South-end Company and Brentwood Company to be audited.

19. Separate accounts of the Southend Company and the Brentwood Company shall be made out for the year ending on the thirty-first day of December one thousand nine hundred and thirty-one and shall be audited by the auditors of those companies respectively in the same manner as they would have been audited if this Act had not been passed.

Provisions of Gas Light Company's Acts and Orders to apply to limits as extended.

20. Subject to the provisions of this Part of this Act all public and private Acts and all Orders confirmed by or having the force of an Act of Parliament relating to or affecting the Gas Light Company or their undertaking immediately before the date of transfer shall (except so far as such Acts and Orders are repealed or amended by this or any other Act or any Order) apply to the undertaking of the Gas Light Company as existing immediately after the date of transfer and as from that date the Gas Light Company within the Gas Light district and within the Southend district and the Brentwood district may exercise all or any of the powers rights privileges and authorities and shall be subject to all the duties obligations and liabilities conferred or imposed by the said Acts and Orders in relation to the Gas Light district or any part thereof :

Provided that nothing in this section shall be construed as extending or enlarging the scope of any of the provisions of the said Acts and Orders which only apply to or affect a specified portion of the undertaking or area of supply of the Gas Light Company or are otherwise specifically of limited application.

Repeal of certain enactments of Southend Company and Brentwood Company and transfer to Gas Light Company of unrepealed enactments.

21.—(1) The Acts and Orders relating to the Southend Company and the Brentwood Company respectively which are named in the first column of the First Schedule to this Act shall as from the date of transfer be and the same are hereby repealed to the extent mentioned in the second column of the said schedule except so far as it may be necessary for the said Acts and Orders or any of them or any of the provisions thereof respectively to remain unrepealed for the purposes of the section of this Act of which the marginal note is "Southend Company and Brentwood Company to continue incorporated for specified purpose."

(2) As from the date of the passing of this Act A.D. 1931. —
the provisions of sections 13 15 and 16 of the Southend-on-Sea Gas Act 1898 shall be read as if the same were amended as follows (that is to say):—

In sections 13 and 16—

“ Port of London Authority ” were substituted for
“ Board of Trade ” wherever the Board of
Trade appears;

the debt referred to therein were a debt due from
the Company to the Port of London Authority
and recoverable as a civil debt or summarily.

In section 15—

“ or Port of London Authority ” were inserted
therein immediately after the words “ Board
of Trade ”;

the debt referred to therein were a debt due from
the Company to the Crown or the Port of
London Authority and recoverable as a Crown
debt or as a civil debt or summarily.

(3) The provisions of the said Acts and Orders
which are not repealed by this section shall continue
in force within the Southend district and the Brentwood
district respectively and the Gas Light Company within
those districts respectively may exercise the powers
conferred and shall be subject to the obligations
imposed by the said provisions in all respects as if the
Gas Light Company had been therein referred to instead
of the Southend Company or the Brentwood Company
(as the case may be):

Provided that notwithstanding anything in the
said provisions with respect to the limits within which
the Southend Company or the Brentwood Company
may supply gas manufactured by them the Gas Light
Company shall be entitled to supply in any part of the
limits of supply any gas manufactured by them under or
by virtue of the powers conferred by the said provisions:

Provided also that if there shall be any inconsistency
between any of the enactments referred to in this sub-
section and any enactment applying to the Gas Light
Company or their undertaking otherwise than by virtue
of this section such last-mentioned enactment shall
prevail.

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Pending
actions not
to abate.

22. If at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding shall be pending or existing by or against or in favour of the Southend Company or the Brentwood Company the same shall not abate or be discontinued or be in anywise prejudicially affected by reason of the transfer to the Gas Light Company of the Southend undertaking or the Brentwood undertaking or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the Gas Light Company as and when it might have been continued prosecuted and enforced by against or in favour of the Southend Company or the Brentwood Company if this Act had not been passed but not further or otherwise.

Contracts
to be
binding.

23. All contracts agreements conveyances deeds leases licences and other instruments affecting the Southend Company or the Brentwood Company and in force at the date of transfer shall (subject as hereinafter provided) as from that date be as binding and of as full force and effect against or in favour of the Gas Light Company and may be enforced against or by the Gas Light Company as fully and effectually as if instead of the Southend Company or the Brentwood Company the Gas Light Company had been a party thereto or bound thereby or entitled to the benefit thereof and the Gas Light Company shall as from the said date indemnify the Southend Company and the Brentwood Company respectively and their respective directors from and against all actions claims demands losses damages costs and expenses whatsoever in respect thereof:

Provided that no contract agreement conveyance deed lease or other instrument made or entered into by the Southend Company after the twentieth day of June one thousand nine hundred and thirty or by the Brentwood Company after the twenty-fifth day of June one thousand nine hundred and thirty and (in the case of either of the said companies) extending beyond the thirty-first day of December one thousand nine hundred and thirty-one shall be binding on or of any force or effect against or in favour of the Gas Light Company if made or entered into without the consent in writing of that company.

Collection
of out-
standing
debts.

24. All rents rates and charges and other sums and debts at the date of transfer due and payable or

accruing due and payable to the Southend Company or the Brentwood Company shall be payable to and may be collected recovered and enforced by the Gas Light Company in the same manner and with and by the same benefits and processes as those with and by which the Southend Company or the Brentwood Company might have enforced the same and shall belong to the Gas Light Company for their own benefit. A.D. 1931.

25. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the Southend Company or the Brentwood Company shall be admitted in evidence in respect of the same or the like matter for or against the Gas Light Company. Books &c. to remain evidence.

26. All officers and persons who at the date of transfer have in their possession or under their control any books documents papers moneys or effects forming part of the Southend undertaking or of the Brentwood undertaking (other than the duplicates of any agreements between the Southend Company or the Brentwood Company and the Gas Light Company for or relating to the sale of the Southend undertaking or of the Brentwood undertaking) or to which the Southend Company or the Brentwood Company would but for the transfer have been entitled shall be liable to account for and deliver up the same to the Gas Light Company or to such persons as the Gas Light Company may appoint to receive the same and subject to the same consequences on refusal or neglect as if such officers and persons had been appointed by and become possessed of such books documents papers moneys and effects for the Gas Light Company. Officers of Southend Company and Brentwood Company to be accountable for books &c.

27. As from the date of transfer the Gas Light Company shall continue to pay all superannuation allowances pensions or other like sums for the payment of which the Southend Company or the Brentwood Company were liable immediately before the date of transfer— Gas Light Company to continue to pay pensions &c.

- (a) to persons entitled thereto in the case of the Southend Company on or before the twentieth day of June one thousand nine hundred and thirty and in the case of the Brentwood Company on or before the twenty-fifth day of June one thousand nine hundred and thirty; and

A.D. 1931.

- (b) to persons who became entitled thereto as of right after the said respective dates under any superannuation pension benevolent or other similar scheme in force on the respective dates referred to in the foregoing paragraph (a); and
- (c) to such other persons (if any) as with the consent of the Gas Light Company became entitled thereto ex gratia after the said respective dates;

and which but for the passing of this Act would have continued to be payable by the Southend Company or the Brentwood Company after the date of transfer and to perform all the obligations of the Southend Company or the Brentwood Company to every person who at the date of transfer shall have become entitled as aforesaid to any such allowance pension or sum as though the Gas Light Company were the Southend Company or the Brentwood Company and in the case of any staff officer of the Southend Company or the Brentwood Company who shall enter the service of the Gas Light Company and join the superannuation fund of that company the Gas Light Company shall in calculating the period of his service for the purpose of any superannuation allowance of such officer upon his retirement from the service of the Gas Light Company take into account the continuous staff service of such officer with the Southend Company or the Brentwood Company as if it had been service with the Gas Light Company.

As to dividends on stocks of Southend Company.

28. The Gas Light Company shall on or before the date (next after the date of transfer) on which dividends are paid on the ordinary and preference stocks of the Gas Light Company pay to the persons who immediately before the date of transfer held ordinary or preference stock of the Southend Company dividends (less income tax) on those stocks for the year ending on the thirty-first day of December one thousand nine hundred and thirty-one at the respective rates at which (regard being had to any interim dividend paid in that year by the Southend Company and to the divisible profits and reserve funds of the Southend Company) such dividends could have been paid if this Act had not been passed :

Provided that the rates of the dividends so to be paid shall not exceed— A.D. 1931.

- (a) in the case of the original consolidated stock and the new ordinary stock of the Southend Company such a rate per centum per annum as with the rate per centum per annum of any such interim dividend as aforesaid will amount to the rate of seven pounds and five shillings per centum per annum; and
- (b) in the case of the new ordinary "B" stock of the Southend Company such a rate per centum per annum as with the rate per centum per annum of any such interim dividend as aforesaid will amount to the rate of six pounds seventeen shillings and sixpence per centum per annum.

29. The Gas Light Company shall on or before the date (next after the date of transfer) on which dividends are paid on the ordinary and preference stocks of the Gas Light Company pay to the persons who immediately before the date of transfer held ordinary or preference stock of the Brentwood Company dividends (less income tax) on such stocks for the half-year ending on the thirty-first day of December one thousand nine hundred and thirty-one at the respective rates at which (regard being had to the divisible profits and reserve funds of the Brentwood Company) such dividends could have been paid if this Act had not been passed:

As to dividends on stocks of Brentwood Company.

Provided that the rates of the dividends so to be paid shall not exceed—

- (a) in the case of the original stock of the Brentwood Company the rate of eight pounds per centum per annum; and
- (b) in the case of the additional stock of the Brentwood Company the rate of five pounds and twelve shillings per centum per annum.

30.—(1) The several persons who immediately before the date of transfer appeared on the registers of the Southend Company and the Brentwood Company respectively to be holders of ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company or the respective executors or

Southend Company's and Brentwood Company's books to be evi-

A.D. 1931.

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dence as
to holders
of stocks.

administrators of such persons shall for the purposes of this Part of this Act and subject to the provisions of the section of this Act of which the marginal note is "Certificates &c. to remain in force" be deemed to be holders of ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company as the case may be and the secretaries of those companies respectively shall forthwith after the date of transfer deliver to the Gas Light Company at the principal office of that company the said registers and as on and from the date of transfer the registers of transfers of ordinary or preference stock or debenture stock of the Southend Company and of the Brentwood Company respectively shall be permanently closed and no transfer of any ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company made on or after the date of transfer shall as between the Gas Light Company and the party claiming thereunder be of any effect.

(2) The issue by the Gas Light Company pursuant to the provisions of this Part of this Act of certificates of ordinary stock or four per centum consolidated preference stock or six per centum Brentwood redeemable preference stock or three per centum consolidated debenture stock (as the case may be) of the Gas Light Company (together with the payment of the sums of cash payable pursuant to the foregoing provisions of this Part of this Act) to the persons whose names appear by the said registers to be registered holders of ordinary or preference stock or debenture stock of the Southend Company or of the Brentwood Company or the respective executors or administrators of such persons or to the persons entitled thereto pursuant to the section of this Act of which the marginal note is "Certificates &c. to remain in force" shall be a sufficient discharge to the Gas Light Company for all purposes.

Applica-
tion of
certain
funds
of South-
end Com-
pany and
Brentwood
Company.

31. As from the date of transfer the moneys and securities forming the reserve funds of the Southend Company and the Brentwood Company respectively shall be added to and form part of the reserve fund of the Gas Light Company and the moneys and securities forming the renewal fund of the Southend Company shall be added to and form part of the special purposes fund of the Gas Light Company and the pension fund

of the Southend Company shall be added to and form part of the appropriate superannuation or pension fund of the Gas Light Company. A.D. 1931. —

32. As from the passing of this Act and until the date of transfer the Southend Company and the Brentwood Company may and shall to the best of their ability and with due diligence maintain and carry on their respective undertakings and for that purpose may exercise all or any of the rights powers privileges and liberties and shall discharge all the duties obligations and liabilities under the respective Acts and Orders relating to those undertakings to the same extent as if this Act had not been passed but so that the Southend Company and the Brentwood Company and the Gas Light Company shall respectively comply with the obligations in relation to the carrying on of the said undertakings contained in any agreement between the Southend Company or the Brentwood Company and the Gas Light Company for or relating to the transfer of the Southend undertaking or the Brentwood undertaking respectively.

Southend Company and Brentwood Company to carry on undertakings until date of transfer.

33. As from the respective dates of the reading of the indices for the December quarter of the year one thousand nine hundred and thirty-one of the meters measuring the gas supplied to the owners or occupiers of premises in the Southend district who consume such gas by meter the Gas Light Company may subject to the provisions of this Act from time to time charge for gas supplied by them to the owners or occupiers for the time being of premises in the Southend district—

Differential price in Southend district.

- (a) in the case of the owners or occupiers of premises in so much of the Southend district as is not comprised in the parishes or parts of parishes to which the next following paragraph (b) applies a price per therm exceeding by not more than one decimal four pence the price for the time being charged by the Gas Light Company for gas supplied to private consumers in that part of the Gas Light district which is north of the river Thames and did not—

(i) immediately before the first day of January one thousand nine hundred and twenty-six form part of the limits of supply of the Brentford Gas Company; or

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(ii) immediately before the first day of January one thousand nine hundred and thirty form part of the limits of supply of the Grays and Tilbury Gas Company or of the limits of supply of the Pinner Gas Company Limited;

- (b) in the case of the owners or occupiers of premises in any parish or part of a parish (other than the parish of Sutton) in the rural district of Rochford (as constituted at the date of transfer) which is comprised in the Southend district a price per therm exceeding the price per therm for the time being charged for gas supplied to the owners or occupiers referred to in the foregoing paragraph (a) by not more than three decimal six pence or such less amount as the Board of Trade may on the application of the Essex County Council or of the Rochford Rural District Council determine :

Provided that—

- (i) at any time after the thirtieth day of June one thousand nine hundred and thirty-six the Gas Light Company or the mayor aldermen and burgesses of the county borough of Southend-on-Sea may in writing represent to the Board of Trade that having regard to the cost to the Gas Light Company of supplying gas in the portion of the Southend district referred to in the foregoing paragraph (a) the differential price chargeable pursuant to that paragraph should be varied in amount or cease to be chargeable;
- (ii) contemporaneously with the submission of any such representation to the Board of Trade the party making the same shall send a copy thereof to the other of the hereinbefore mentioned parties;
- (iii) the Board of Trade shall consider any such representation and any other representations with reference thereto which may be submitted to them by the said party other than the party making the original representation and the said Board if satisfied that having regard to such cost as aforesaid it is proper so to do and after

holding such inquiry (if any) as they may think fit may make an order to take effect as from such date or respective dates (not being earlier than the respective dates of the reading of the indices for the December quarter of the year one thousand nine hundred and thirty-six of the meters measuring the gas supplied in the said portion of the Southend district) as may be prescribed in the order varying the amount of the said differential price or providing for the discontinuance thereof within such period and in such manner as may be prescribed by the order;

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- (iv) any order made by the Board of Trade under this proviso shall have effect as if enacted in this Act subject to the powers of the Board of Trade from time to time on a like application as aforesaid to make an order amending any previous order made by them under this proviso but no application for an amending order shall be made until after the expiration of five years from the date of any representation made under paragraph (i) of this proviso or from the date of any previous application for an amending order under this paragraph.

34. As from the respective dates of the reading of the indices for the December quarter of the year one thousand nine hundred and thirty-one of the meters measuring the gas supplied to the owners or occupiers of premises in the Brentwood district who consume such gas by meter the Gas Light Company may from time to time charge for gas supplied by them to the owners or occupiers for the time being of premises in the Brentwood district—

Differ-
ential
price in
Brentwood
district.

- (a) in the case of the owners or occupiers of premises in so much of the Brentwood district as is not comprised in the parish or part of a parish to which the next following paragraph (b) applies a price per therm equal to the price per therm for the time being charged by the Gas Light Company for gas supplied by them to the owners or occupiers of premises in that part of the Gas Light district which is referred to

A.D. 1931.

in subsection (3) of section 34 (Differential price in Grays district and Pinner district) of the Gas Light and Coke Company's Act 1929;
 (b) in the case of the owners or occupiers of premises in the parish of Ingatestone and Fryerning in the rural district of Chelmsford and such part of the parish of Mountnessing in the rural district of Billericay as lies on the west side of a straight line drawn in a south-westerly direction from the point at which the boundaries of the parishes of Buttsbury Ingatestone and Fryerning and Mountnessing meet to Mountnessing Hall and as does not lie on the south-westerly side of the north-easterly boundary of the road leading from Swallows Cross via St. Ann's Lane to Mountnessing Hall leaving Arnold's Farm to the north a price per therm exceeding the price per therm for the time being charged for gas supplied to the owners or occupiers referred to in the foregoing paragraph (a) by not more than—

(i) two pence for the period commencing on the date of transfer and ending on the twentieth day of May one thousand nine hundred and thirty-six;

(ii) one penny for the period of five years next succeeding; and

(iii) decimal six of a penny from and after the twentieth day of May one thousand nine hundred and forty-one.

Registra-
 tion of
 Gas Light
 Company
 as holders
 of invest-
 ments
 transferred
 from
 Southend
 Company
 and Brent-
 wood Com-
 pany.

35. At any time after the date of transfer upon production to the secretary or registrar or other officer charged with the registration of transfers of any stock shares or securities held by the Southend Company or the Brentwood Company immediately before that date of a King's Printers' copy of this Act and upon payment of the appropriate fee for the registration of a transfer on sale of such stock shares or securities such secretary registrar or other officer shall enter the name of the Gas Light Company in the appropriate register as holders of such stock shares or securities and thereupon the Gas Light Company shall be deemed for all purposes to be the registered holder of such stock shares or securities.

36. Unless and until the Gas Light Company otherwise declare the declared calorific value of the gas supplied by them in the Southend district and the Brentwood district respectively shall continue to be the calorific value as declared immediately before the date of transfer.

A.D. 1931.

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As to declared
calorific value
of gas in
Southend
district and
Brentwood
district.

37.—(1) The Gas Light Company shall pay to the mayor aldermen and burgesses of the county borough of Southend-on-Sea (in this section referred to as "the corporation") as from the date of transfer as the same severally become payable by the corporation all sums becoming payable by them (whether in respect of principal or interest or sinking fund payments) in respect of moneys borrowed by the corporation solely for the purposes or on account of or in connection with the gas undertaking of the corporation transferred to the Southend Company by the Southend-on-Sea and District Gas Order 1923 so far as the moneys so borrowed are outstanding on the date of transfer and every such sum shall be paid by the Gas Light Company to the corporation at least seven days before the corresponding sum becomes payable by the corporation.

For pro-
tection of
Southend-
on-Sea
Corpora-
tion.

(2) The Gas Light Company shall also pay to the corporation by twenty-seven equal half-yearly instalments of principal and interest (each such instalment amounting to seven hundred and ninety-six pounds fourteen shillings and sixpence) so much of the sum of twenty thousand pounds with interest thereon at five per centum per annum referred to in clause 3 of the agreement dated the twenty-fifth day of August one thousand nine hundred and twenty-two and made between the corporation of the one part and the Southend Company of the other part as shall not have been paid to the corporation by the Southend Company before the date of transfer the first of such instalments to be payable on the thirty-first day of March one thousand nine hundred and thirty-two and subsequent instalments to be payable on the thirtieth day of September and the thirty-first day of March in every year until the last of the said twenty-seven instalments shall have been paid.

(3) The Gas Light Company before applying any other of their revenues to the purposes of subsection (2) of this section shall apply in or towards the discharge

A.D. 1931. — of their obligations under that subsection the moneys and securities forming the capital redemption fund of the Southend Company immediately before the date of transfer.

(4) (a) If at any time after the passing of this Act the boundaries of the said county borough shall be extended so as to include any parish or part of a parish to which paragraph (b) of the section of this Act of which the marginal note is "Differential price in Southend district" applies (in this section referred to as "the added area") the corporation shall be entitled at any time within six months after the date on which such extension of boundaries takes effect to represent in writing to the Board of Trade that having regard to the cost to the Gas Light Company of supplying gas in the added area the differential price referred to in the said paragraph (b) should in relation to the added area be varied in amount or cease to be chargeable.

(b) Contemporaneously with the submission of any such representation to the Board of Trade the corporation shall send a copy thereof to the Gas Light Company.

(c) The Board of Trade shall consider any such representation and any representations with reference thereto which may be submitted to them by the Gas Light Company and the said Board if satisfied that having regard to such cost as aforesaid it is proper so to do and after holding such inquiry (if any) as they may think fit may make an order to take effect as from such date or respective dates (not being earlier than the respective dates of the reading of the indices of the meters measuring the gas supplied in the added area for the quarter of the year which commences next after the date of the making of such order) as may be prescribed in the order varying the amount of the said differential price or providing for the discontinuance thereof in relation to the added area within such period and in such manner as may be prescribed by the order.

(d) Nothing in this subsection shall alter or affect the right of the Gas Light Company or of the corporation to make representations under the said proviso to the section of this Act of which the marginal note is "Differential price in Southend district" with reference to the said county borough and on any occasion on which the corporation are entitled under the said proviso

to make such representations they shall be entitled under and in accordance with the foregoing provisions of this subsection to make a representation to the Board of Trade for the variation or discontinuance of so much (if any) of the differential price referred to in paragraph (a) of this subsection as shall then be chargeable. A.D. 1931.

38.—(1) The directors of the Southend Company and the Brentwood Company respectively holding office at the date of transfer shall retire from office as from that date (except that the said directors shall continue to act as directors of the Southend Company and the Brentwood Company respectively without remuneration or fees so long as those companies shall respectively continue incorporated pursuant to the section of this Act of which the marginal note is “Southend Company and Brentwood Company to continue incorporated for specified purpose”) and the Gas Light Company shall within one month after the date of transfer pay to each of the said directors as compensation for loss of office a sum of money equivalent to seven years’ purchase of the annual amount of the remuneration of such director as a director of the Southend Company or the Brentwood Company (as the case may be) according to the rate of remuneration of such director in force (in the case of the Southend Company) on the twentieth day of June one thousand nine hundred and thirty and (in the case of the Brentwood Company) on the twenty-fifth day of June one thousand nine hundred and thirty.

(2) Each of the auditors of the Southend Company and the Brentwood Company respectively holding office at the date of transfer shall retire from office as from that date (except that such auditors shall continue to hold their respective offices without remuneration for the purpose of auditing the accounts of those companies respectively in accordance with the provisions of the section of this Act of which the marginal note is “Separate accounts of Southend Company and Brentwood Company to be audited”) and as compensation for loss of office shall be paid by the Gas Light Company within one month after the date of transfer a sum equal to three years’ remuneration of his office as such auditor according to the rate of remuneration of such auditor in force (in the case of the Southend Company) on the twentieth day of June one thousand nine hundred and

Com-
pensation
to directors
and
auditors of
Southend
Company
and Brent-
wood Com-
pany.

A.D. 1931. — thirty and (in the case of the Brentwood Company) on the twenty-fifth day of June one thousand nine hundred and thirty.

As to
officers of
Southend
Company
and Brent-
wood Com-
pany.

39.—(1) The Gas Light Company shall subject as is hereinafter provided take over and employ as on and from the date of transfer and on the terms of their existing contracts such of the staff officers of the Southend Company and the Brentwood Company respectively as the Gas Light Company may elect to take over and employ and as shall be willing to enter the service of the Gas Light Company.

(2) The officers so taken over shall subject as hereinafter provided become subject to the same obligations as are imposed upon the officers of the Gas Light Company to join the superannuation fund and guarantee fund of that company and shall be eligible for appointment as co-partners of that company on the like terms and conditions as officers of the Gas Light Company are so eligible.

(3) If the Gas Light Company elect not to take over any staff officer of the Southend Company or of the Brentwood Company who shall be willing to enter their service the Gas Light Company shall pay to such officer by way of compensation for loss of office and in full discharge of all rights of or obligations to such officer (including any rights or obligations under any superannuation or pension or benevolent scheme of the Southend Company or of the Brentwood Company or otherwise) such an amount as may be agreed between the Gas Light Company and such officer or as failing such agreement may be determined by an arbitrator to be agreed upon or in default of agreement appointed on the application of the Gas Light Company or of such officer by the President of the Institute of Chartered Accountants and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such determination. All compensation payable by the Gas Light Company under the provisions of this subsection shall be paid forthwith after the date of transfer or after the date on which the amount thereof shall have been agreed or determined whichever is the later.

(4) For the purposes of this Act the amounts of the salaries of the staff officers of the Southend Company and the Brentwood Company respectively shall unless

otherwise agreed between the Gas Light Company on the one hand and the Southend Company or the Brentwood Company (as the case may be) on the other hand be deemed to be the amounts to which such staff officers were respectively entitled by way of salary (in the case of the Southend Company) on the twentieth day of June one thousand nine hundred and thirty and (in the case of the Brentwood Company) on the twenty-fifth day of June one thousand nine hundred and thirty with the addition of any automatic increase to which on or before the date of transfer any of such officers may have become entitled by the terms of his engagement or of any increase which on or before the date of transfer would in the ordinary course have been accorded to him. A.D. 1931.

40. The scheme relating to the compensation to be paid to employees of authorities companies or bodies carrying on gas undertakings for loss of employment consequent upon the amalgamation of such undertakings which was adopted by the National Joint Industrial Council for the Gas Industry on the first day of May one thousand nine hundred and thirty shall apply to employees of the Southend Company and the Brentwood Company respectively (other than staff officers of those companies) and to the Gas Light Company in respect of such employees. As to compensation to employees of Southend Company and Brentwood Company.

41.—(1) Whenever the Gas Light Company require to execute any work within the Southend district over under or within three feet of any main pipe or apparatus belonging to the Southend Waterworks Company (in this section referred to as "the water company") or whenever the water company in the exercise of their statutory powers require to execute any work in the Southend district over under or within three feet of any main pipe or apparatus of the Gas Light Company the Gas Light Company or the water company requiring to execute the work (in this section referred to as "the operators") shall unless otherwise agreed between the parties interested give to the water company or to the Gas Light Company owning the main pipe or apparatus (in this section referred to as "the owners") not less than twenty-four hours' notice before commencing to execute any such work as aforesaid except in emergency and then so soon as is possible after the beginning of the work or the necessity for the work shall have arisen and For protection of Southend Waterworks Company.

A.D. 1931. the owners shall be entitled by their officer to superintend the work and the operators shall conform with such reasonable requirements as may be made by the owners or such officer for protecting from injury every such main pipe or apparatus and for securing access thereto and shall also if required so to do by the owners repair any damage that may be done thereto.

(2) Where the operators find it necessary to undermine any such main pipe or apparatus they shall temporarily support the same in position during the execution of their works and before completion provide a suitable and proper foundation for the same where so undermined.

(3) If the operators make default in complying with any of the requirements of this section they shall make compensation to the owners for any loss damage penalty or costs which the owners may incur by reason thereof.

(4) If any difference shall arise under the provisions of this section between the Gas Light Company and the water company the difference shall be referred to an engineer to be appointed (failing agreement) by the President of the Institution of Civil Engineers on the application of the Gas Light Company or the water company and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

PART III.

PRICE OF GAS AND APPLICATION OF PROFITS.

Commence-
ment of Part
III of Act.

42. This Part of this Act shall come into operation on the appointed day.

Definition
of expres-
sions in
Part III
of Act.

43. In and for the purposes of this Part of this Act—

The expression "the central area" means that part of the limits of supply which is situate northward of the river Thames and was immediately before the first day of January one thousand nine hundred and twenty-six comprised in the area of supply of the Gas Light Company;

The expression "differential price area" means any part of the limits of supply in which for the time being the gas supplied by the Gas Light Company is under the express authority of

any Act or Order charged for by them at a price per therm exceeding the price per therm charged by the Gas Light Company for gas supplied by them in the central area; A.D. 1931.

The expression "the excess price" means in relation to any differential price area the amount by which for the time being the price per therm charged for gas supplied by the Gas Light Company in that area exceeds the price per therm charged for gas supplied by them in the central area; and

The expression "the product of the excess price" means in relation to any year or half-year the aggregate of the amounts produced by multiplying the excess price applicable to each differential price area by the total number of therms sold by the Gas Light Company in that area in that year or half-year. Provided that in any year or half-year in which in relation to any differential price area the excess price is not uniform the portion of the product of the excess price which is attributable to that area shall be deemed to be the aggregate of the amounts produced by multiplying each such excess price by the number of therms sold at a price including that excess price.

44. Subject to the provisions of this Act the basic price of gas supplied by the Gas Light Company shall be eleven pence per therm and that price is in this Part of this Act referred to as "the basic price." Basic price.

45.—(1) The Gas Light Company may subject to and in accordance with the provisions of this Part of this Act charge for gas supplied by them in the limits of supply a price per therm greater or less than the basic price but except as by this Part of this Act otherwise provided the Gas Light Company shall not declare any larger dividend on the ordinary stock of that company than a dividend at the rate of five pounds per centum per annum on the nominal amount thereof or (in the case of ordinary stock not fully paid up) on the amount paid up thereon. Limita-
tion of
dividends.

(2) The said rate of dividend is in this Part of this Act referred to as "the basic rate."

A.D. 1931.

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Division
of profits.

46. The following provisions shall have effect with respect to the division of the profits of the Gas Light Company (that is to say) :—

(1) At the end of each year or half-year a sum shall be calculated representing the amount (if any) by which the total amount (after deducting the product of the excess price) payable by consumers of gas supplied by the Gas Light Company during such year or half-year has been less than the amount which would have been payable if the gas so supplied had been charged for at the basic price and for the purposes of this paragraph the amount payable by a consumer of gas supplied through a prepayment meter shall be deemed to be the amount which would have been payable if the quantity of gas so supplied had been supplied through an ordinary meter :

(2) If and so far as the balance standing to the credit of the net revenue account after providing for—

(a) dividend on the preference stocks of the Gas Light Company ;

(b) dividend at the rate of three and a half per centum per annum on the three and a half per centum maximum stock of that company ;

(c) dividend at the basic rate on the ordinary stock of that company ; and

(d) the sum to be set aside pursuant to the section of this Act of which the marginal note is " Redemption fund " in relation to the distribution of a dividend at the basic rate on the said ordinary stock ;

in the opinion of the directors permits a sum not exceeding two-fifteenths of the sum calculated pursuant to the foregoing paragraph (1) shall be applied in two equal parts for the benefit of the holders of ordinary stock and for the benefit of the employees in manner hereinafter mentioned :

(3) Any sum so to be applied for the benefit of the holders of ordinary stock may after complying with the provisions of the said section

of this Act of which the marginal note is A.D. 1931.
"Redemption fund" to the extent of the
amount payable pursuant to that section after
deducting the sum referred to in paragraph (d)
of subsection (2) of this section be applied in
the payment of dividend at a rate additional
to the basic rate and if and so far as the
sum applicable to additional dividend is not so
applied such sum may be carried to the reserve
fund:

- (4) Any sum so to be applied for the benefit of the
employees shall—

(a) to such extent and in accordance with
any such system as is referred to in the section
of this Act of which the marginal note is "As
to payment of bonus to employee co-
partners" be applied by way of bonus
addition to the salaries and wages of the
employee co-partners and any sum so applied
shall be deemed to be in satisfaction pro
tanto of the amount of the bonus addition
payable in accordance with such system; and

(b) as to so much (if any) thereof as is not
applied in accordance with the foregoing para-
graph (a) be carried to the credit of the
superannuation funds and other benefit or wel-
fare fund or funds of the Gas Light Company
or any of such funds in such proportions as
the directors may determine and any sum so
carried to the credit of the said funds or any of
them shall be deemed to be in satisfaction pro
tanto of any contribution which the Gas Light
Company are for the time being required to
make to such fund or funds:

- (5) Any balance of the profits of the Gas Light
Company not applied as aforesaid shall be
carried forward to the credit of the net revenue
account for the next following year or half-year
Provided that the sum so carried forward shall
not exceed the total of the following amounts:—

(a) the amount required by the Gas Light
Company for paying any dividend on their
preference stocks and three and a half per
centum maximum stock and ordinary stock

A.D. 1931.

and interest on moneys borrowed or debenture stock issued for the purposes of their undertaking which the Gas Light Company are entitled or required to pay but have not paid in respect of the year or half-year preceding such following year or half-year;

(b) an amount equal to the total sum which will be required for paying one year's dividend on the said preference stocks and three and a half per centum maximum stock and one year's dividend at the basic rate on the said ordinary stock;

(c) an amount equal to the total sum which the Gas Light Company will be required to pay during the next following year or half-year as interest on any mortgages or debenture stock; and

(d) the amounts to be set aside pursuant to the section of this Act of which the marginal note is "Redemption fund" in relation to the distribution of—

(i) the dividend on the said ordinary stock comprised in the foregoing paragraph (a); and

(ii) one year's dividend at the basic rate on the said ordinary stock:

- (6) Notwithstanding anything contained in the foregoing provisions of this section but subject to the provisions of the section of this Act of which the marginal note is "As to payment of bonus to employee co-partners" no sum shall be (a) divided in excess of the basic rate or carried to the reserve fund and (b) applied for the benefit of the employees in respect of any period in which the price charged by the Gas Light Company for gas supplied to the ordinary consumers in any part of the Gas Light district which is north of the river Thames and is not for the time being a differential price area is equal to or in excess of the basic price.

As to revision of basic price.

47.—(1) The Gas Light Company or any local authority may at any time within six months after the first day of January in the year one thousand nine

hundred and forty and within six months after the expiration of any subsequent period of five years apply to the Board of Trade for and the said Board may on any such application if they think fit make an order revising the basic price and on the making of any such order this Act shall have effect as if the basic price fixed by such order were substituted for the basic price prescribed by this Act : A.D. 1931.

Provided that upon any application for a revision of the basic price nothing in this section shall be deemed to preclude the Gas Light Company from submitting that so much of any decrease in the costs and charges of and incidental to the production and supply of gas by the Gas Light Company as may be attributable to the efficiency with which the undertaking of the Gas Light Company has been carried on should not be taken into account.

(2) The said Board may in the said order make such consequential alterations in the statutory provisions applicable to the Gas Light Company as are deemed necessary.

(3) The basic price fixed by any order made by the Board of Trade under this section may from time to time be revised by orders made by the said Board in the like circumstances on the like application and with the like consequences as in the case of an order under subsection (1) of this section.

(4) Before making any order under this section the Board of Trade shall require the Company to give public notice in the London Gazette and in such other manner as the Board may consider best adapted for informing persons affected of the application for an order and of the basic price per therm proposed and as to the manner in which and the time within which objections may be made and shall if they think it expedient to do so cause an inquiry to be held. The notice to be given under this section shall include notice to the local authority.

(5) In this section the expression "local authority" shall include the council of any county and of any borough or urban district wholly or partly within the limits of supply.

A.D. 1931.

(6) Nothing in this section shall preclude the Gas Light Company from promoting at any time a Bill in Parliament for altering the basic price or for any other purpose.

Reserve
fund.

48.—(1) Any moneys which the Gas Light Company are by this Act authorised to carry to the reserve fund may be invested in such securities as the directors may from time to time determine and the dividends and interest arising from such securities may be invested in like manner in order that the same may accumulate at compound interest.

(2) The fund so formed shall be called "the reserve fund" and shall be applicable in or towards increasing beyond the basic rate the dividend on the ordinary stock of the Gas Light Company for any year or half-year or in or towards the payment of dividend for any year or half year in which the profits of the Gas Light Company shall be insufficient to enable the Gas Light Company to pay a dividend at the basic rate on their ordinary stock or to such other purpose or purposes as the directors may determine.

(3) The money and securities standing to the credit of or representing the existing reserve fund of the Gas Light Company as at the thirty-first day of December one thousand nine hundred and thirty-one shall as on the appointed day be transferred and credited to the reserve fund provided for by this Act and save as is by this Act provided no sum shall in any year be carried by the Gas Light Company to any reserve fund.

Differential
prices.

49. Nothing in this Part of this Act shall alter or affect any power or obligation to charge different prices per therm for gas supplied by the Gas Light Company in different parts of the limits of supply conferred or imposed by this or any other Act or any Order relating to the Gas Light Company..

Redemp-
tion fund.

50.—(1) In respect of any half-year ending on the thirtieth day of June one thousand nine hundred and thirty-two or on any subsequent thirty-first day of December or thirtieth day of June in respect of which the Gas Light Company or the directors distribute a dividend on the ordinary stock of that company at any rate per centum per annum in excess of the rate of four per centum per annum the Gas Light Company

shall set aside a sum of money to be determined in accordance with subsection (2) of this section and the several sums so from time to time set aside shall be and form a redemption fund to be applied in the manner provided by subsection (4) of this section.

A.D. 1931.
—

(2) Where the rate of dividend so distributed exceeds the rate per centum per annum mentioned in the first column of the next following table but does not exceed the rate per centum per annum mentioned in the second column of that table the sum to be set aside as aforesaid shall be the sum mentioned in the third column of the said table :—

Rate per centum per annum.	Rate per centum per annum.	Amount.
£ s. d.	£ s. d.	£
4 0 0	4 6 8	5,000
4 6 8	4 13 4	10,000
4 13 4	5 0 0	15,000
5 0 0	—	20,000

(3) For the purpose of providing the sums to be set aside as aforesaid the Gas Light Company shall apply to the necessary extent the balance for the time being standing to the credit of the net revenue account.

(4) The Gas Light Company shall apply the said redemption fund in the year following that in respect of which it is set aside in purchasing in the open market ordinary stock of the Gas Light Company and every amount of such stock so purchased shall upon the completion of the purchase thereof be cancelled and thenceforth be and be taken to be extinguished.

(5) This section shall cease to operate when the Gas Light Company have by means of the said redemption fund purchased and cancelled ordinary stock of that company to a nominal amount which when added to the aggregate nominal amount of such stock purchased and cancelled by means of the redemption fund formed by the setting aside of sums in respect of any year or half-year ended before the appointed day pursuant to section 9 (Redemption fund) of the Gas Light and Coke Company's Act 1903 or that section as amended by any subsequent enactment is equal to one million pounds

A.D. 1931. — and a certificate under the hand of the secretary of the Board of Trade shall be conclusive evidence of the total amount of the ordinary stock of the Gas Light Company from time to time purchased and extinguished by means of any such redemption fund as aforesaid.

As to application of Gas Regulation Act 1920.

51. Notwithstanding anything contained in this Part of this Act the provisions of the Gas Regulation Act 1920 (other than subsections (2) and (3) of section 1 of that Act and subject to the provisions of section 53 (Testing &c. of dried gas) of the Gas Light and Coke Company's Act 1929) shall continue to apply to the Gas Light Company as if this Part of this Act were an order made under section 1 of the said Gas Regulation Act 1920.

As to payment of bonus to employee co-partners.

52. Nothing in this Part of this Act shall be construed as precluding the Gas Light Company from paying out of their revenue any bonus addition to the salaries and wages of employee co-partners which may be payable in accordance with any such system as the directors may from time to time determine.

PART IV.

BORROWING POWERS AND OTHER FINANCIAL PROVISIONS.

Additional powers of borrowing.

53.—(1) The Gas Light Company may subject to the provisions of this Act but (except as otherwise provided by subsection (2) of this section) without the certificate of a justice of the peace under the fortieth section of the Companies Clauses Consolidation Act 1845 from time to time borrow on mortgage of their undertaking or (subject to and in accordance with the provisions of section 5 (Debenture stock) of the Gas Light and Coke Company's Act 1926) raise by the creation and issue of debenture stock in respect of their capital issued at the date or respective dates on which the Gas Light Company exercise the powers of this section any sum or sums (in addition to the mortgages debentures and debenture stock of the Gas Light Company outstanding at the said date or dates) not exceeding in the whole (when added to the aggregate amount of (a) the moneys secured by the mortgages and debentures so outstanding and (b) the nominal amount of the debenture stock so outstanding) sixty-two and a half per centum of the aggregate of the nominal amount of such issued capital and of any premiums paid in respect thereof.

(2) No sum shall be borrowed under the powers of this section in respect of any capital issued by the Gas Light Company under the authority of any future Act until the Gas Light Company have proved to a justice of the peace before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole amount payable in respect of the stock or shares in such capital at the time issued together with the premiums (if any) realised on the sale thereof has been fully paid up. A.D. 1931.
—

(3) All powers of the Gas Light Company of raising money by borrowing on mortgage of their undertaking or by the creation and issue of debenture stock existing but unexercised immediately before the date of the passing of this Act are hereby repealed.

(4) Section 2 (Authorised amount of loans) of the Gas Undertakings Act 1929 shall not apply to the Gas Light Company.

54. All money raised or to be raised by the Gas Light Company on mortgage or by the issue of debenture stock under the provisions of this Act shall have priority against the Gas Light Company and the property from time to time of the Gas Light Company over all other claims on account of any debts incurred or other engagements entered into by them after the passing of this Act: Priority of mortgages and debenture stock over other debts.

Provided that this priority shall not affect any claim against the Gas Light Company or their property in respect of any rentcharge granted or to be granted in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Gas Light Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

55. The principal moneys secured by all mortgages granted by the Gas Light Company in pursuance of the powers of any Act of Parliament or Order before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Act. Priority of principal moneys secured by existing mortgages.

A.D. 1931.

Redeem-
able
debenture
stock.

56.—(1) In this section unless the context otherwise requires—

“ Stock ” means debenture stock ;

“ Issue ” includes re-issue ;

“ Redeemable stock ” means any stock issued under the powers of this section so as to be redeemable ;

“ Redeemed stock ” means any redeemable stock which has been redeemed in accordance with the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any stock created by the Gas Light Company after the date of this Act under the powers of any former Act or of this Act or of any subsequent Act and any redeemed stock Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of the Gas Light Company passed at a special meeting convened for the purpose.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Gas Light Company may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit. Provided that no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of stock exceed the amount which the Gas Light Company are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock is proposed to be so created or issued.

(4) When any redeemable stock has been redeemed the amount (exclusive of any sum obtained by way of premium) which was last raised by its issue shall cease to be taken into account in calculating the extent to which the powers of the Gas Light Company of raising

money by borrowing on mortgage of their undertaking or by the creation and issue of debenture stock have been or may be exercised Provided that the nominal amount of any stock issued solely in substitution for other stock shall be deemed to be the amount raised by such issue.

A.D. 1931.

(5) Redeemable stock shall bear such rate of interest and shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any prospectus or other document issued by the Gas Light Company offering such stock for sale or subscription and in the certificates of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

(6) The Gas Light Company shall not redeem out of revenue any redeemable stock except to the extent of any discount allowed on the issue or any premium payable on the redemption thereof.

57. All moneys raised under the powers of this Part of this Act including premiums shall be applied only to purposes to which capital is properly applicable.

Application of money.

PART V.

CONVERSION OF MORTGAGE DEBENTURES.

58. On and from the appointed day the following mortgage debentures of the Gas Light Company (that is to say) :—

Conversion of mortgage debentures of Gas Light Company.

- (a) mortgage debentures bearing interest at the rate of five per centum per annum (in this Part of this Act referred to as “five per centum debentures”) and amounting to twelve thousand seven hundred pounds; and
- (b) mortgage debentures bearing interest at the rate of five and a quarter per centum per annum (in this Part of this Act referred to as “five and a quarter per centum debentures”) amounting to twenty thousand pounds;

shall be by virtue of this Act consolidated and converted into three per centum consolidated debenture stock

A.D. 1931. — of the Gas Light Company to such amount as shall be requisite for the purposes of this Part of this Act.

Creation of consolidated debenture stock for purposes of this Part of Act.

59.—(1) On the appointed day there shall be by virtue of this Act and without any other requisite created such an amount of three per centum consolidated debenture stock of the Gas Light Company as shall be necessary for giving effect to the provisions of this Part of this Act.

(2) The debenture stock created under the provisions of this section shall in all respects and for all purposes be deemed to form part of and be consolidated with the three per centum consolidated debenture stock of the Gas Light Company existing at the appointed day and the interest thereon shall rank *pari passu* with the interest on the said existing debenture stock.

Issue of debenture stock to holders of mortgage debentures.

60.—(1) The three per centum consolidated debenture stock created under the provisions of this Part of this Act shall subject to the provisions of this Part of this Act be divided among and shall as from the appointed day be vested without payment in the persons who immediately before that day were registered as the holders of mortgage debentures of the Gas Light Company in the following proportions (that is to say):—

For every one hundred pounds of five per centum debentures one hundred and sixty-six pounds thirteen shillings and four pence of three per centum consolidated debenture stock;

For every one hundred pounds of five and a quarter per centum debentures one hundred and seventy-five pounds of three per centum consolidated debenture stock.

(2) The three per centum consolidated debenture stock so to be created and divided as aforesaid shall as soon as practicable after the appointed day (subject to the provisions of the section of this Act of which the marginal note is “As to fractional parts of one pound of debenture stock issued under this Part of Act”) be registered in the books of the Gas Light Company in the respective names of the persons entitled thereto.

(3) The three per centum consolidated debenture stock so to be created and registered as aforesaid shall bear interest as from the thirty-first day of December

one thousand nine hundred and thirty-one and as from A.D. 1931.
that date the said mortgage debentures shall cease to
bear any interest.

61. In every case where under the provisions of this Part of this Act a holder of five per centum debentures would be entitled to be registered as the holder of any fractional part of one pound of three per centum consolidated debenture stock or of any amount of such debenture stock including such fractional part as aforesaid the Gas Light Company in lieu of registering such holder and issuing to him a certificate as holder of such fractional part of one pound of three per centum consolidated debenture stock or of an amount of three per centum consolidated debenture stock including such fractional part shall pay to such holder such a sum in cash as shall be equal to the value of such fractional part at the mean market price on the appointed day and shall register such holder and issue to him a certificate as holder of the amount (if any) of three per centum consolidated debenture stock to which he shall be entitled as aforesaid excluding such fractional part and the receipt of such holder for the sum in cash so paid as aforesaid shall be a sufficient discharge to the Gas Light Company in respect of such fractional part. The Gas Light Company may either cancel all or any of the three per centum consolidated debenture stock in respect of which such payment has been made or issue the same to any willing purchaser thereof in amounts of one pound or multiples thereof but not otherwise and any loss or expense which may be incurred in connection with such issue shall be borne by the Gas Light Company.

As to
fractional
parts of
one pound
of debenture stock
issued
under this
Part of
Act.

62. The Gas Light Company shall call in the five per centum debentures and the five and a quarter per centum debentures and shall issue free of charge in exchange therefor to the respective holders of such debentures certificates for three per centum consolidated debenture stock of the Gas Light Company of the respective amounts and pay to such holders the sums of cash (if any) to which those holders are by this Part of this Act respectively entitled but no holder of such debentures shall be entitled to a certificate for debenture stock or to receive any such sum of cash as aforesaid until he shall have delivered up to the Gas Light Company to be cancelled the debenture or debentures for which

Exchange
of certificates for
debenture stock for
mortgage debentures.

A.D. 1931. — such certificate and sum of cash (if any) are to be substituted or shall have proved to the reasonable satisfaction of the directors the loss or destruction of such debenture or debentures and shall have given to the Gas Light Company an indemnity against any and every claim in respect of such lost or destroyed debenture or debentures. Provided that until the issue of certificates for such debenture stock the holders of the debentures shall (according to the amounts of three per centum consolidated debenture stock which such debentures respectively represent) have and possess the same rights and privileges as if such debentures were certificates for those respective amounts of such debenture stock but if any such holder neglect or omit to send or deliver to the Gas Light Company his debenture or debentures for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Gas Light Company the Gas Light Company may suspend the payment of any interest becoming payable upon or in respect of the debenture stock to be issued to him as aforesaid until such debenture or debentures is or are delivered up to the Gas Light Company or is or are proved to the reasonable satisfaction of the directors to have been lost or destroyed and until such indemnity as aforesaid shall have been given.

Trustees
to accept
debenture
stock
issued
under this
Part of
Act.

63. The three per centum consolidated debenture stock of the Gas Light Company of which the holders of debentures of that company are pursuant to the provisions of this Part of this Act respectively registered as the holders and the sums of cash to be paid by the Gas Light Company under this Part of this Act in respect of the fractional parts of one pound as aforesaid shall be held in the same rights upon the same trusts and subject (so far as is consistent with such provisions) to the same powers provisions charges and liabilities as those in upon or to which the debentures were held or were subject immediately before the appointed day and shall be dealt with applied or disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such debentures and not to adeem any gift of such debentures made by any will or other testamentary instrument and trustees executors or administrators and all other holders in any representative or fiduciary capacity of

any of the said debentures are hereby expressly authorised and required to accept any three per centum consolidated debenture stock of which they are pursuant to the provisions of this Part of this Act registered as the holders and any sums of cash paid to them under the provisions of this Part of this Act and to hold dispose of or otherwise deal with such debenture stock and sums of cash in all respects as they might have held disposed of or otherwise dealt with the debentures for which the same are substituted and are hereby excused from liability in respect of all acts bona fide done by them in pursuance of the provisions of this Part of this Act.

A.D. 1931.

64. All transfers or other dispositions of any debentures of the Gas Light Company referred to in this Part of this Act made but not registered before the appointed day if otherwise valid shall notwithstanding the provisions of this Part of this Act be valid and have due effect given to them respectively as transfers or dispositions of (as the case may be)—

As to transfers of mortgage debentures made but not registered.

(a) the amounts (being in each case a multiple of one pound) of three per centum consolidated debenture stock of the Gas Light Company which represent the debentures thereby expressed to be transferred or disposed of and which are substituted for the same by this Part of this Act; or

(b) (i) three per centum consolidated debenture stock of the Gas Light Company to the amount of the multiple of one pound next below the amount of such debenture stock which but for the provisions of the section of this Act of which the marginal note is "As to fractional parts of one pound of debenture stock issued under this Part of Act" would have represented the debentures transferred or disposed of by such transfer or disposition as aforesaid; and

(ii) a sum in cash equal to the value of any fractional part of one pound of such debenture stock at the mean market price on the appointed day;

although the instrument of transfer or disposition shall describe the same as mortgage debentures and the Gas

A.D. 1931. Light Company shall accordingly register the debenture stock in the name of the transferee or person taking under the disposition and pay to such transferee or person the sum (if any) payable in cash and any bequest of or any covenant in or provision of any deed or instrument which but for the passing of this Act would apply to the debentures so transferred or disposed of as aforesaid shall be held to apply to an amount of three per centum consolidated debenture stock of the Gas Light Company equal to that which is under the provisions of this Part of this Act substituted for such debentures together with any sum of cash payable under the provisions of this Part of this Act in respect of any fractional part of one pound of debenture stock.

PART VI.

MISCELLANEOUS.

Agreements
between
Gas Light
Company
and other
gas under-
takers.

65.—(1) The Gas Light Company and any company body or person authorised to supply gas under statutory powers may with the approval of the Board of Trade enter into and carry into effect agreements for the amalgamation purchase leasing or joint working or management of their respective undertakings including agreements for or in connection with the joint use of buildings works or plant and the provision or adaptation of buildings works or plant for such joint use and for the setting up and joint use or carrying on of establishments for research and generally for any purpose which will in the opinion of the parties to any such agreement conduce to the more economical or efficient manufacture distribution and sale of gas or manufacture working up conversion sale or use of residual products.

(2) In any case in which the Gas Light Company apply to the Board of Trade for their approval of any agreement entered into or proposed to be entered into under the provisions of subsection (1) of this section the Gas Light Company shall—

- (a) give notice of such application to the council of every county and county borough wholly or partly within any area in which the parties to such agreement supply or are authorised to supply gas and to the City Corporation; and

- (b) if the Board of Trade so direct give notice of such application in such manner as the said Board may require including (if so required) notice to the council of every municipal borough (not being a county borough) and urban district wholly or partly within any such area as aforesaid and to the council of any county county or other municipal borough and urban district (other than such as are referred to in the foregoing provisions of this subsection) which in the opinion of the said Board is affected by such agreement; A.D. 1931.

and the said Board shall before giving such approval consider any representations which may be made to them by any such authority as is referred to in paragraph (a) of this subsection or which may in accordance with any directions in that behalf contained in any such notice as is referred to in paragraph (b) of this subsection be made to them by any such council as is referred to in that paragraph.

(3) The Board of Trade may if they think fit approve any such agreement subject to any modification of the terms thereof to which the parties thereto assent.

66.—(1) Notwithstanding anything contained in any Act or Order relating to the Gas Light Company it shall be lawful for the Gas Light Company with the approval of the Board of Trade—

Powers with reference to companies formed for laying of pipes.

- (a) to subscribe for purchase or acquire and hold or dispose of any shares stock mortgages debentures or debenture stock of or to lend money to any company formed for the purpose of providing or laying pipes for the transmission of gas or to guarantee the payment of preferential or other dividends or of interest on any shares stock mortgages debentures or debenture stock issued by any such company;
- (b) to use for the purposes of their undertaking any pipes provided or laid by any such company and pay rent or other consideration to such company for such use.

A.D. 1931.

(2) In any case in which the Gas Light Company apply to the Board of Trade for their approval under this section the Gas Light Company shall—

(a) give notice of such application to the council of every county and county borough wholly or partly within the limits of supply for the time being of the Gas Light Company and to the City Corporation; and

(b) if the Board of Trade so direct give notice of such application in such manner as the said Board may require including (if so required) notice to the council of every municipal borough (not being a county borough) and urban district wholly or partly within the said limits of supply and to the council of any county or other municipal borough and urban district (other than such as are referred to in the foregoing provisions of this subsection) which in the opinion of the said Board is affected by the matters to which such application relates;

and the said Board shall before giving such approval consider any representations which may be made to them by any such authority as is referred to in paragraph (a) of this subsection or which may in accordance with any directions in that behalf contained in any such notice as is referred to in paragraph (b) of this subsection be made to them by any such council as is referred to in that paragraph.

Power to
invest in
securities
of other
companies
&c.

67. The Gas Light Company may purchase or acquire and hold or dispose of any shares stock mortgages debentures or debenture stock of or lend money to any company body or local authority where such company body or local authority—

(i) are themselves engaged in the manufacture distribution or sale of gas or residual products; or

(ii) carry on or are about to carry on any undertaking business or process of manufacture for or in connection with which residual products or other products manufactured or dealt in or authorised to be manufactured or dealt in

by the Gas Light Company or the products arising from the working up or conversion of such residual products are or can be used; or

A.D. 1931.
—

- (iii) carry on or are about to carry on any undertaking or business for or in connection with the production carbonisation gasification sale or distribution of coal coke or oil or of products arising therefrom or any of those matters:

Provided that—

- (a) the aggregate amount applied by the Gas Light Company for the purposes of this section and remaining so applied at any time shall not exceed one-tenth part of the nominal amount of the issued capital of the Gas Light Company for the time being;
- (b) the amount applied by the Gas Light Company for the purposes of this section in the case of any one company body or local authority and remaining so applied at any time shall not exceed one-twentieth part of such nominal amount as aforesaid except with the approval of the Board of Trade; and
- (c) the Gas Light Company shall give notice of any application for the approval of the Board of Trade under the foregoing proviso (b) to the council of every county and county borough wholly or partly within the limits of supply for the time being of the Gas Light Company and to the City Corporation and the said Board shall before giving such approval consider any representations which may be made to them by any such authority.

68. Any agreement entered into under the foregoing provisions of this Act may provide that any consideration being in the nature of a capital payment and payable thereunder by either of the parties thereto to the other of them may be satisfied wholly or in part by the allotment of such shares stock debentures or debenture stock of the company from whom such consideration is due as may be agreed upon between such parties or partly by the one and partly by the other of such modes as may be so agreed and thereupon it shall be

Securities may be taken as consideration.

A.D. 1931. — lawful for either of such parties to issue such shares stock debentures or debenture stock accordingly and all shares or stock so issued shall for all purposes be deemed fully paid up :

Provided that in estimating the extent to which any such consideration is satisfied by any shares or stock issued under the provisions of this section such shares or stock shall be taken at the average price at which according to the books of the company issuing the same sales of similar shares or stock were effected within the period of six months immediately preceding the issue thereof or if there has been only one sale or no sale of similar shares or stock within the said period then at the price at which the last sale of similar shares or stock was effected making due allowance in each case for any enhancement of value by reason of any accrued dividend.

The price at which such shares or stock are or is to be issued shall be determined by the company issuing the same in accordance with the provisions of this section.

Loans to
other
companies
and ex-
change of
securities.

69. In any case in which the Gas Light Company and any other company have entered into any agreement authorised by this Act the Gas Light Company may effect exchanges of stock or securities of the Gas Light Company with proprietors of stock shares or securities of such other company or may lend money to such other company to such extent as in the opinion of the directors of such other company will be of advantage for furthering the purposes of such agreement including the reduction of the price of gas.

Meetings
of Gas
Light
Company.

70. Notwithstanding anything contained in section 4 (Annual ordinary meetings and half-yearly dividends) of the Gas Light and Coke Company's Act 1917 the annual ordinary meetings of the Gas Light Company shall be held in such month in each year and on such date in that month as the directors may from time to time determine Provided that the date determined by the directors for any annual ordinary meeting of the Gas Light Company shall not be later than fifteen months after the holding of the last preceding annual ordinary meeting of that company.

71.—(1) The net profits of the Gas Light Company which remain after providing for the dividends on the several preference stocks of that company shall be applicable in the first place in paying rateably and without preference or priority a dividend up to three pounds ten shillings per centum per annum on the three and a half per centum maximum stock of the Gas Light Company and up to two pounds sixteen shillings per centum per annum on the ordinary stock of that company.

A.D. 1931.
—
As to three and a half per centum maximum stock.

(2) The three and a half per centum maximum stock shall not in any half-year be entitled to any dividend in excess of the rate of three pounds ten shillings per centum per annum.

(3) Subject to the provisions of this section the making of dividends on the three and a half per centum maximum stock shall be subject to the provisions of the Companies Clauses Consolidation Act 1845 with respect to the making of dividends. Provided that any half-yearly dividend on the said stock declared by the directors under the provisions of section 4 (Annual ordinary meetings and half-yearly dividends) of the Gas Light and Coke Company's Act 1917 shall be deemed to be a dividend made subject to the said provisions of the Companies Clauses Consolidation Act 1845.

72.—(1) As from the passing of this Act section 54 (as to remuneration of directors of Gas Light Company) of the Gas Light and Coke Company's Act 1929 shall be read and have effect as if the sum of seventeen thousand five hundred pounds had been mentioned therein instead of the sum of fifteen thousand pounds.

As to remuneration of directors and auditors of Gas Light Company.

(2) As from the passing of this Act section 67 (As to remuneration of directors and auditors of Gas Light Company) of the Gas Light and Coke Company's Act 1925 shall be read and have effect as if the sum of one thousand pounds had been mentioned in subsection (2) thereof instead of the sum of eight hundred pounds.

73. All things required or authorised under this Act to be done by the Board of Trade may be done by the President or secretary or assistant secretary of the Board or any person authorised in that behalf by the President of the Board.

Exercise of powers of Board of Trade.

74. The Acts and Orders relating to the Gas Light Company which are mentioned in the first column of

Repeals.

A.D. 1931. the Second Schedule to this Act shall be and are hereby repealed as from the appointed day to the extent mentioned in the second column of that schedule.

Crown
rights.

75. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown or of the commissioners for carrying into execution the Crown Estate Paving Act 1851 and the several Acts therein recited so far as the subsisting provisions thereof have not been repealed or altered.

Costs
of Act.

76. All the costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Gas Light Company and may be defrayed wholly or partly out of revenue.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1931.

FIRST SCHEDULE.

ACTS AND ORDERS OF SOUTHEND COMPANY AND BRENTWOOD COMPANY TO BE REPEALED.

Acts and Orders
Repealed.

Extent of Repeal.

The Southend Gas Act 1877.	The whole Act except— Section 48 (Powers as to construction and maintenance of gasworks); Section 49 (Power to purchase lands by agreement; gas not to be manufac- tured except on lands scheduled); and The schedule to the Act.
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The Southend Gas Act 1892.	The whole Act except— Section 6 (Powers as to construction and maintenance of gasworks &c.); Section 12 (Power to purchase lands by agreement. Gas not to be manufac- tured except on lands scheduled); and The schedule to the Act.
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The Southend-on-Sea Gas Act 1898.	The whole Act except— Section 6 (Power to take lands); Section 8 (Power to construct pier or landing place); Section 12 (Company to exhibit lights); Section 13 (Works below high-water mark not to be commenced without consent of Board of Trade); Section 14 (Provision against danger to navigation); Section 15 (Abatement of work aban- doned or decayed); Section 16 (Survey of work by Board of Trade);
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[Ch. xlviii.] *Gas Light and* [21 & 22 GEO. 5.]
Coke Company's Act, 1931.

A.D. 1931.	Acts and Orders Repealed.	Extent of Repeal.
	—	—
	The Southend-on-Sea Gas Act 1898— <i>con- tinued.</i>	Section 17 (Saving rights of the Crown in the foreshore); Section 18 (Saving rights of the Crown under Crown Lands Act); Section 19 (Power to purchase lands by agreement); Section 45 (Agreements with corpora- tion as to exercise of electric lighting powers); Section 49 (Exemption from Part III of Southend-on-Sea Corporation Act 1895); and The schedule (Parts I and II) to the Act.
	The Southend-on-Sea Gas Act 1904.	The whole Act except— Section 4 (Power to take lands and construct gasworks); Section 5 (Power to purchase lands by agreement); Section 28 (Power to erect houses for workmen and other buildings); and The schedule to the Act.
	The Southend-on-Sea Gas Act 1914.	The whole Act except— Section 6 (Powers as to construction and maintenance of gasworks &c.); Section 31 (For protection of Essex County Council); Section 32 (For protection of Rochford Rural District Council); Section 33 (For protection of Port of London Authority); Section 34 (For protection of Great Eastern and Midland Railway Com- panies); and The schedule to the Act.
	The Southend-on-Sea Gas Act 1920.	The whole Act except— Section 5 (Confirmation of agreement for purchase of Rochford under- taking); Section 6 (For protection of Essex County Council); Section 7 (For protection of Great Eastern Railway Company); and The Second Schedule to the Act.

[21 & 22 GEO. 5.] *Gas Light and Coke Company's Act, 1931.* [Ch. xlviii.]

Acts and Orders Repealed.	Extent of Repeal.	A.D. 1931.
The Southend-on-Sea and District Gas Order 1923.	The whole Order except— Section 8 (Application of money by Corporation); Section 12 (Compensation to manager of Corporation's undertaking); Section 30 (Purchase of lands by agreement); Section 42 (For protection of Port of London Authority); Section 43 (For protection of London and North Eastern Railway Company); Section 44 (For protection of London Midland and Scottish Railway Company); and Paragraph 8 of the agreement set out in the Second Schedule to the Order.	
The Southend-on-Sea and District Gas Order 1928.	The whole Order except— Section 12 (Charges for prepayment meters).	
The Southend-on-Sea and District Gas (No. 2) Order 1928.	The whole Order.	
The Brentwood Gas Act 1905.	The whole Act except— Section 53 (Powers as to construction and maintenance of gasworks); Section 56 (Power to purchase lands by agreement. Gas not to be manufactured except on lands scheduled); Section 58 (For protection of Great Eastern Railway Company); Section 74 (Price of gas for public lighting); Section 75 (Dwelling-houses for persons in Company's employment); and The schedule to the Act.	
The Brentwood Gas (Charges) Order 1921.	The whole Order except— Section 5 (Price for gas supplied to public lamps).	

[Ch. xlviii.] *Gas Light and Coke Company's Act, 1931.* [21 & 22 GEO. 5.]

A.D. 1931.	Acts and Orders Repealed.	Extent of Repeal.
	The Brentwood Gas Order 1925.	The whole Order except— Subsection (1) of section 26 (Additional gasworks); Section 27 (Purchase of additional lands by agreement); and The Second Schedule to the Order.
	The Brentwood Gas Order 1926.	The whole Order except— Section 15 (Power to maintain gasworks and convert residual products); Section 16 (For protection of the London and North Eastern Railway Company); and The Second Schedule to the Order.

SECOND SCHEDULE.

ACTS AND ORDERS RELATING TO GAS LIGHT COMPANY
TO BE REPEALED.

Acts and Orders Repealed.	Extent of Repeal.
The City of London Gas Act 1868.	Section 29 (Appointment of referees); Section 30 (Continuance of referees); Section 31 (Quorum &c. of referees); and Section 32 (Certificate of referees).
The Gaslight and Coke Company's Act 1868.	Section 29 (First and other ordinary meetings).
The Gaslight and Coke Company Act 1876.	Section 20 (Maximum price of Cannel Gas). Section 22 (Application of excess profits over standard rate of dividend); Section 23 (Power to create a reserve fund out of dividends in excess of the standard rate of dividend and application thereof);

[21 & 22 GEO. 5.] *Gas Light and* [Ch. xlviii.]
Coke Company's Act, 1931.

Acts and Orders. Repealed.	Extent of Repeal.	A.D. 1931.
The Gaslight and Coke Company Act 1876— <i>continued</i> .	Section 26 (Pressure of gas); Section 28 (Examination of gasworks by referees); Section 29 (Access to works); Section 30 (Purity of gas to be pre- scribed); Section 31 (Mode and times of testing purity of gas). Section 32 (Mode of measuring gas for public lamps); Section 34 (Provision of testing places and apparatus); Section 35 (Control &c. of testing places) Section 38 (Appointment of gas ex- aminers); Section 39 (Appointment of chief gas examiner); and Section 63 (Ordinary meetings).	
The City of London (Various Powers) Act 1877.	Section 15 (Remuneration and expenses of chief gas examiner and auditor) save so far as the same relates to the auditor therein referred to; and Section 16 (Remuneration and expenses of gas examiners).	
The Gaslight and Coke and other Gas Com- panies Acts Amend- ment Act 1880.	So much of the Act as relates to the Gas Light Company.	
The Scheme for the Amalgamation of the London Gas- light Company with the Gaslight and Coke Company con- firmed by Order in Council dated the 22nd day of May 1883.	So much of Section 39 (Limits of United Company) as applies to the Gaslight and Coke Company incorporated by the Scheme the provisions of the City of London Gas Act 1868 and of the Gaslight and Coke Company Act 1876 repealed by this Act and the first and third provisoes to that section.	
The Gas Light and Coke Company's Act 1903.	Section 9 (Redemption Fund).	
The London Gas Act 1905.	So much of the Act as relates to the Gas Light Company.	

[Ch. xlviii.] *Gas Light and* [21 & 22 GEO. 5.]
Coke Company's Act, 1931.

A.D. 1931.	Acts and Orders. Repealed.	Extent of Repeal.
	The Gas Light and Coke Company's Act 1909.	Section 18 (As to testing of gas in West Ham district). Section 34 (Reduction of standard price and amendment of enactments relating to sliding scale); Section 35 (Amending sections 21 22 and 23 of Gas Light and Coke Company Act 1876); Section 40 (Provisions as to testing for calorific power in London); Section 41 (Provisions as to testing for calorific power in West Ham district); Section 42 (Power to Board of Trade to vary standard calorific power); and Section 43 (Gas Light Company to supply suitable burners gratis in lieu of those in use).
	The Gas Light and Coke Company's Act 1911.	Section 20 (As to testing of gas in Barking and Chigwell districts).
	The Gas Light and Coke Company's Act 1914.	Section 4 (Substitution of new standard calorific power of gas supplied by Company); Section 5 (As to apparatus for and mode of testing calorific power); Section 6 (Amendment of existing provisions as to testing for calorific power); Section 7 (Extension of provisions as to calorific power to parts of area of supply where not now applicable); Section 9 (Amendment of provisions of Gas Light and Coke Company Act 1876 as to testing for quality); Section 10 (Amendment of provisions of Act of 1880 as to testing for illuminating power &c.); Section 12 (Amendment of provisions of London Gas Act 1905 as to testing for illuminating power &c.); Section 13 (Amendment of section 18 of Act of 1909 and section 20 of Act of 1911 as to testing for illuminating power);

[21 & 22 GEO. 5.] *Gas Light and* [Ch. xlviii.]
Coke Company's Act, 1931.

Acts and Orders Repealed.	Extent of Repeal.	A.D. 1931.
The Gas Light and Coke Company's Act 1914— <i>continued</i> .	Section 15 (Amendment of sections 40 and 41 of Act of 1909 as to testing for illuminating power); Section 16 (Company to substitute suit- able burners free of charge).	
The Gas Light and Coke Company's Act 1917.	Section 6 (Use of reserve fund).	
The Gas Light and Coke Company (Charges) Order 1921.	The whole Order except— Section 5 (Charge for prepayment meters); Section 6 (Measure of therms supplied); Section 7 (Variation of declared calorific value); Section 8 (Consumers' burners); Section 9 (Pressure); and The schedule to the Order.	
The Gas Light and Coke Company (Charges) Amending Order 1926.	The whole Order.	
The Gas Light and Coke Company's Act 1926.	Section 11 (As to dividends on ordinary stock); Section 14 (Amendment of section 9 of Act of 1903).	

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